STATE OF NEW YORK
UNIFIED COURT SYSTEM
FIRST JUDICIAL DISTRICT
SUPREME COURT, CIVIL BRANCH
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LAWRENCE K. MARKS
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DEBORAH A. KAPLAN
Administrative Judge for Civil Matters
First Judicial District

GEORGE J. SILVER
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New York City Courts

NOTICE OF NEUTRAL EVALUATION PROGRAM FOR COMMERCIAL DIVISION MATTERS SUPREME COURT NEW YORK COUNTY CIVIL BRANCH

Consistent with the policy of the Unified Court System, Supreme Court, New York County Civil Branch encourages the resolution of civil legal disputes utilizing Alternative or Appropriate Dispute Resolution (ADR) methods including mediation, arbitration, neutral evaluation, in-court settlement practices, and summary trials.

During the Coronavirus (Covid-19) pandemic, New York County Supreme Court is committed to finding less costly and innovative ways of resolving matters, and offers free, remote Neutral Evaluation services for commercial matters through the **Neutral Evaluation Program** (the "**NEP**") with trained, well qualified and experienced Neutral Evaluators from our court roster.

Cases may be referred to Neutral Evaluation on consent of the parties at any time during the litigation. The Neutral Evaluator hears abbreviated case presentations, provides an informal assessment of the strengths and weaknesses of the arguments and may offer a non-binding opinion. Neutral Evaluators have significant experience in their specified area of law and specific training in Neutral Evaluation. Their assessments and opinions may help parties to analyze the case, facilitate discussion, and generate a settlement. Referral to the NEP will not stay the court proceedings.

The Court strongly encourages you to try Neutral Evaluation. Acceptance into the program through this notice requires that all parties consent to be referred to the NEP. Please do not contact the Court Part where your case is pending regarding this program. If all parties agree, please email Jean Norton, ADR Coordinator for Supreme Court, New York County Civil Branch, at: jnorton@nycourts.gov.

We look forward to working with you.

Hon. Deborah A. Kaplan
Administrative Judge
Supreme Court, New York County-
Civil Branch

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